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7 An Act relating to Service Oklahoma; defining terms;
8 authorizing Service Oklahoma to issue electronic
9 credentials to certain individuals; requiring certain
10 data match; authorizing certain contracts; requiring
11 validity period be set by Service Oklahoma; requiring
12 the promulgation of certain rules; detailing the
13 building of the electronic credentialing system;
14 limiting request to certain electronic credential
15 data elements; stating certain applicability;
16 providing that relying parties do not need to make
17 certain authentication; limiting the retention of
18 certain data; requiring certain information be
19 provided; stating electronic credentials shall be
20 accepted as a valid form of identification; amending
21 47 O.S. 2021, Section 1-114, as amended by Section
22 24, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
23 Section 1-114), which relates to driver and driver
24 license; modifying definition; amending 47 O.S. 2021,
Section 1-155, as amended by Section 26, Chapter 282,
O.S.L. 2022 (47 O.S. Supp. 2025, Section 1-155),
which relates to revocation of driving privilege;
requiring the surrender of physical driver license
and invalidation of electronic driver license;
stating termination shall not depend on certain
physical possession of a credential; amending 47 O.S.
2021, Section 6-209, as amended by Section 12,
Chapter 11, O.S.L. 2024 (47 O.S. Supp. 2025, Section
6-209), which relates to surrender and return of
license; requiring the surrender of physical driver
license and invalidation of electronic driver
license; modifying means of verifying identification;
providing for codification; and providing an
effective date.

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3 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

4 SECTION 1. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 110A of Title 47, unless there
6 is created a duplication in numbering, reads as follows:

7 "Credential" shall mean a driver license, permit, or
8 identification card issued by Service Oklahoma.

9 SECTION 2. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 110B of Title 47, unless there
11 is created a duplication in numbering, reads as follows:

12 "Credential holder" shall mean an individual that has been
13 issued a physical or electronic credential.

14 SECTION 3. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 114.1 of Title 47, unless there
16 is created a duplication in numbering, reads as follows:

17 "Electronic credential" shall mean an electronic extension of
18 the physical credential issued by Service Oklahoma that conveys
19 identity and driving privilege information.

20 SECTION 4. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 114.2 of Title 47, unless there
22 is created a duplication in numbering, reads as follows:

23 "Electronic credential system" means a digital process that
24 includes a method for provisioning electronic credentials,

1 requesting and transmitting electronic credential data elements, and
2 performing tasks to maintain the system.

3 SECTION 5. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-144A of Title 47, unless there
5 is created a duplication in numbering, reads as follows:

6 "Physical credential" shall mean a document issued by Service
7 Oklahoma that conveys identity and driving privilege information.

8 SECTION 6. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 153A of Title 47, unless there
10 is created a duplication in numbering, reads as follows:

11 "Relying party" means the entity to which the credential holder
12 is presenting the electronic credential.

13 SECTION 7. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1-187 of Title 47, unless there
15 is created a duplication in numbering, reads as follows:

16 "Verification process" means a method of authenticating the
17 electronic credential through the use of secure encrypted
18 communication.

19 SECTION 8. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 6-131 of Title 47, unless there
21 is created a duplication in numbering, reads as follows:

22 A. Service Oklahoma may issue an electronic credential only to
23 individuals who are otherwise eligible to hold a physical
24 credential. The data used to build an electronic credential shall

1 match the current relevant Service Oklahoma records. Service
2 Oklahoma:

3 1. May contract with one or more entities to develop an
4 electronic credential system;

5 2. Shall set the validity period of electronic credentials; and

6 3. Shall promulgate rules to implement the provisions of this
7 section.

8 B. Service Oklahoma shall build the electronic credentialing
9 system following industry best practices to protect the privacy of
10 the credential holder and prevent tracking.

11 C. Relying parties shall only request electronic credential
12 data elements that are necessary to complete the transaction for
13 what data is being requested. Electronic credential data is subject
14 to all applicable Oklahoma and federal data security and privacy
15 protection laws and regulations.

16 D. Electronic credentials shall not require communication with
17 Service Oklahoma for relying parties to authenticate an electronic
18 credential.

19 E. Relying parties shall only retain electronic credential data
20 elements for which the relying party explicitly obtained consent
21 from the electronic credential holder. Relying parties shall inform
22 the electronic credential holder of the use and retention period of
23 the electronic data elements.

1 F. Electronic credentials shall be a valid form of
2 identification in all places that a physical driver license is
3 accepted for identification.

4 SECTION 9. AMENDATORY 47 O.S. 2021, Section 1-114, as
5 amended by Section 24, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
6 Section 1-114), is amended to read as follows:

7 Section 1-114. Driver and driver license.

8 A. "Driver" means any person who drives, operates or is in
9 actual physical control of a vehicle.

10 B. "Driver license" means a document issued by Service Oklahoma
11 or the driver licensing agency of another state or country which
12 grants to the person named thereon the privilege to drive, operate
13 or be in actual physical control of a motor vehicle. The term shall
14 include an intermediate Class D driver license, a learner permit and
15 commercial learner permit. The term shall also include both the
16 physical document or the digital version of the document approved by
17 Service Oklahoma.

18 SECTION 10. AMENDATORY 47 O.S. 2021, Section 1-155, as
19 amended by Section 26, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
20 Section 1-155), is amended to read as follows:

21 Section 1-155. Revocation of driving privilege.

22 The termination by formal action of Service Oklahoma of a
23 person's privilege to operate a motor vehicle on the public
24 highways. Such action shall include the requirement of the

1 surrender to Service Oklahoma of the person's physical driver
2 license and the invalidation or electronic disablement of any
3 electronic driver license issued to the person. The effectiveness
4 of the termination shall not depend on physical possession of a
5 credential.

6 SECTION 11. AMENDATORY 47 O.S. 2021, Section 6-209, as
7 amended by Section 12, Chapter 11, O.S.L. 2024 (47 O.S. Supp. 2025,
8 Section 6-209), is amended to read as follows:

9 Section 6-209. A. Service Oklahoma upon canceling or denying
10 the driver license of a person or upon suspending or revoking the
11 driving privilege of a person shall require that the physical driver
12 license of the person be surrendered to Service Oklahoma and that
13 the electronic driver license issued to the person shall be
14 invalidated or disabled. When the statutory requirements for
15 reinstatement are met in accordance with Oklahoma Statutes, the
16 person shall apply for a new driver license from Service Oklahoma;
17 provided Service Oklahoma has determined that the licensee is a
18 person not prohibited from holding a driver license under Section 6-
19 103 of this title, and has successfully completed the customary
20 written, physical and driving tests, if such tests are required.
21 Identification of the person shall be verified through the ~~driver~~
22 ~~license digital file~~ records of Service Oklahoma.

23 B. Service Oklahoma, upon entering an order canceling or
24 denying a driver license or suspending or revoking the driving

1 privilege of a person, shall forward a copy of the order to the
2 licensee pursuant to the provisions of Section 2-116 of this title
3 and request the immediate return of the driver license to Service
4 Oklahoma. Failure to comply with the order of Service Oklahoma
5 shall constitute a misdemeanor and, upon conviction, the person
6 shall be punished by a fine of not less than Fifty Dollars (\$50.00)
7 nor more than One Hundred Dollars (\$100.00).

8 C. Any peace officer of this state may seize the license of any
9 person who, according to Service Oklahoma records, is under
10 suspension, cancellation, revocation or denial under the provisions
11 of this title. The officer shall immediately forward the license to
12 Service Oklahoma.

13 D. No person shall have a property interest in the physical
14 driver license issued pursuant to the laws of this state. It shall
15 be the duty of every person whose driving privilege has been
16 suspended, canceled or revoked to immediately surrender his or her
17 driver license upon the request of any peace officer or
18 representative of Service Oklahoma.

19 SECTION 12. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 25th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate